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Blind refugee abandoned by Border Patrol is dead

Nurul Amin Shah Alam, a Rohingya refugee from Burma, was nearly blind and spoke no English. He was dropped off by agents in Buffalo on the other side of town from his home. His family was not notified of his release. Police are investigating.

By [J. Dale Shoemaker](#)

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Nurul Amin Shah Alam. Photo via his missing persons poster.

This is a developing story. It was last updated at 7:20 p.m.

Nurul Amin Shah Alam, a nearly blind refugee from Burma who Border Patrol agents [dropped off at a doughnut shop Thursday](#) and left to find his way home, 5 miles away, has been found dead.

City Hall spokesperson Ian Ott said Shah Alam, 56, was found by B District officers after they responded to a call for a dead body on the first block of Perry Street shortly after 8:30 p.m. Tuesday.

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Homicide detectives, Ott said, “are investigating the circumstances and timeframe of events leading up to his death, following his release from custody.”

Ott said the cause of death was determined by the medical examiner to be “health related in nature,” ruling out death by exposure and homicide.

“I’m devastated, and I’m very frustrated,” said Imran Fazel, an advocate for Rohingya refugees who knows the family. “We never thought anyone would experience anything like this since coming to the United States. It doesn’t make me feel safe in a country like this.”

Our continuing coverage

- [Blind refugee missing](#) (Feb. 24)
- [Calls for investigation into refugee’s death](#) (Feb. 26)
- Timeline: [From Nurul Amin Shah Alam’s arrest to his death](#)
- [Other coverage of immigration enforcement](#) in Western New York

Shah Alam, a Rohingya refugee, had been [missing since February 19](#). He was released that afternoon from custody at the Erie County Holding Center after posting bail. In response to an immigration detainer that had been placed on him, the Erie County Sheriff’s Office contacted U.S. Border Patrol prior to his release, according to spokesperson Christopher Horvatits.

Benjamin Macaluso, a [Legal Aid Bureau](#) attorney representing Shah Alam, said Border Patrol agents picked him up at the Holding Center at 4:39 p.m. Thursday.

Shah Alam was released on bail, Macaluso said, after he had agreed to a plea deal with the Erie County District Attorney’s office. Shah Alam’s guilty plea to charges of trespassing and possession of a weapon — a curtain rod he used as a walking stick — allowed him to “clear” the detainer and avoid detention by ICE or another immigration agency, Macaluso said.

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After taking custody of Shah Alam, Border Patrol agents dropped him off at a Tim Hortons on Niagara Street in the Black Rock neighborhood, Macaluso said, shortly after 8 p.m. Shah Alam and his family live in the Broadway-Fillmore neighborhood on the East Side, according to Fazal.

A spokesperson for Border Patrol, in a statement Wednesday evening, said after agents determined Shah Alam was not supposed to be in their custody, they “offered him a courtesy ride, which he chose to accept to a coffee shop.” That Tim Hortons, the spokesperson said, was “determined to be a warm, safe location near his last known address, rather than be released directly from the Border Patrol station.”

“He showed no signs of distress, mobility issues, or disabilities requiring special assistance,” the spokesperson said in the statement.

Agents, however, did not notify Macaluso or Shah Alam’s family of his release to the coffee shop. Macaluso previously told Investigative Post he expected Shah Alam to be taken to the ICE detention center in Batavia and that his client would be released from there.

Instead, Macaluso and Shah Alam’s family spent Friday through Sunday searching for him. Macaluso opened a missing persons case with Buffalo police on Sunday, he said.

As Investigative Post [reported Tuesday](#), Special Victims Unit detective Richard Hy closed the case for several hours Monday in the mistaken belief Shah Alam was in custody at ICE’s detention facility in Batavia. The case was subsequently reopened.

Michael Niezgoda, a spokesperson for U.S. Customs and Border Protection, the parent agency of Border Patrol, did not immediately respond Wednesday to an inquiry from Investigative Post. Kara Kane, a spokesperson for the Erie County Medical Examiner, declined to release information about Shah Alam’s cause of death.

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Shah Alam had been in the Erie County Holding Center since February 2025 after being arrested by Buffalo police. On February 15 last year, he had been out for a walk in his neighborhood and had been using a curtain rod he purchased as a walking stick.

Nearly blind and with no ability to speak English, Shah Alam got lost and ended up on the porch of a woman's home as she was letting her dog out, according to Macaluso. Shah Alam is completely blind in one eye and can only see with blurry vision for several feet in the other, according to Macaluso.

The woman called police, Macaluso said. When Shah Alam did not follow police commands to drop his curtain rod, they Tasered and beat him, then arrested him, Macaluso said. The officers suffered minor injuries in the scuffle, he said.

Shah Alam was charged with offenses including assault, trespassing and possession of a weapon. Macaluso said Shah Alam's family opted to not bail him out of the Holding Center for fear he would end up detained by ICE out of state.

The plea deal reached recently allowed Shah Alam to be released on bail without ICE detention, Macaluso said.

Shah Alam's death comes just 15 months after his arrival in Buffalo in December 2024. He is survived by his wife and two sons.

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